



POLICE DEPARTMENT CITY OF NEW YORK

April 18, 2017

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Mandeep Singh  
Tax Registry No. 952245  
41 Precinct  
Disciplinary Case No. 2016-15614  
-----

**Charges and Specifications:**

1. Police Officer Mandeep Singh, on or about November 13, 2015, at approximately 0700 hours, while assigned to the 41<sup>st</sup> Precinct and on duty, in the vicinity of [REDACTED], wrongfully used force, in that he struck Person B with an asp without police necessity. (*As amended*)  
P.G. 203-11 – USE OF FORCE
2. Police Officer Mandeep Singh, on or about November 13, 2015, at approximately 0700 hours, while assigned to the 41<sup>st</sup> Precinct and on duty, in the vicinity of [REDACTED], engaged in conduct prejudicial to the good order, efficiency, or discipline of the New York City Police Department, in that he threatened Person A with the use of force, without sufficient legal authority.  
P.G. 203-10, Page 1, Paragraph 5 – PUBLIC CONTACT – PROHIBITED CONDUCT

**Appearances:**

For CCRB-APU: Jonathan Fogel, Esq.  
Civilian Complaint Review Board  
100 Church Street, 10<sup>th</sup> Floor  
New York, NY 10007

For the Respondent: Craig Hayes, Esq.  
Worth, Longworth & London, LLP  
111 John Street – Suite 640  
New York, NY 10038

**Hearing Date:**  
February 28, 2017

**Decision:**  
Not Guilty

**Trial Commissioner:**  
ADCT Jeff S. Adler

## REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on February 28, 2017.

Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. CCRB introduced the hearsay statement of eyewitness Person A, as well as a videotaped recording of the incident. Respondent testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

## DECISION

After reviewing the evidence presented at the hearing, and assessing the credibility of the witnesses, I find Respondent not guilty of the charged misconduct.

## FINDINGS AND ANALYSIS

The two charges in this case stem from an incident that occurred at approximately 0700 hours on November 13, 2015 [REDACTED]. Respondent and other officers were responding to a stabbing at that location. The primary issue is whether Respondent wrongfully struck a 14-year old female, Person B, with his baton while she was interfering with the arrest of her brother. Also at issue is whether Respondent unlawfully threatened an onlooker, Person A, who was in the immediate vicinity of the arrest.

Person B did not appear to testify, and no exhibit of any prior interview with her was offered. Person B's medical records [REDACTED], where she was treated and released on November 13, were admitted as CCRB Ex. 4. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Person A informed CCRB that she would not appear to testify. A recording of her CCRB phone interview of January 15, 2016, along with the accompanying transcript, were admitted as CCRB Exs. 1 and 1A, respectively. Hearsay evidence is admissible in an administrative tribunal, and a case may be proven with such evidence, provided it is found to be sufficiently reliable and probative on the issues to be determined. See *Ayala v. Ward*, 170 A.D.2d 235 (1<sup>st</sup> Dept. 1991); *In the Matter of 125 Bar Corp. v. State Liquor Authority of the State of New York*, 24 N.Y.2d 174 (1969). To be sure, it is preferable to have testimony from a live witness, where opposing counsel has the opportunity to cross-examine, and the court can observe the demeanor of the witness. In the absence of such live testimony here, this tribunal listened carefully to the prior recorded statement of Person A, and reviewed the accompanying transcript.

In her statement, Person A stated that she heard shouting and screaming, and came downstairs to the lobby area. She observed three or four officers on this one little girl. One of the officers struck the girl three times with his baton while she already was lying on her stomach. Person A claimed that she saw the officer strike the girl with the baton in the head and back. According to Person A, the girl was scared, red, nervous, and throwing up. Person A stated that “maybe basically half of the building came downstairs,” and “a lot of people did not agree what was going on.” Person A and others yelled at the officer to stop. The officer with the baton then turned toward them “and tried to come swinging at everybody else,” though no one else was struck. The officers yelled at the crowd to back up and move back, and the girl was brought out in handcuffs. (CCRB Ex. 1A at 4-5, 7, 11-12, 14)

Video footage from a camera inside the lobby area of the building was admitted into evidence (CCRB Ex. 2). That footage shows both portions of the incident, the interaction between Respondent and Person B, as well as Respondent's alleged threat of Person A afterward. At about the 7:14 time stamp, Person B's brother goes inside an apartment as three police officers can be seen approaching. Person B walks past the police toward the exit, visibly agitated. At 7:14:21, Respondent's partner, Officer Sanchez, with the help of other officers, pulls the brother from the apartment and tackles him to the floor. Person B rushes back toward where the officers are trying to handcuff her brother, and a fourth officer who has arrived pushes her aside. At 7:14:27, Person B again moves determinedly into the fray. She leans in and appears to throw a punch with her right hand toward Officer Sanchez, just as Respondent runs into the building holding his baton extended. As one of the officers is trying to pull Person B away, Respondent grabs for Person B with his left hand as the momentum of the struggle backs him into the wall. Respondent is standing precariously close at the top of four stairs. Respondent then swings his baton several times at Person B with his right hand. It is unclear precisely where the baton strikes Person B, though it appears the last strikes make contact with her lower body around her legs. An additional officer rushes in and grabs hold of Person B, lifting her off the floor and putting her against the wall where she is handcuffed.

At about 7:15:03, a female rushes up the steps toward where the officers are holding Person B. Other people can be seen congregating close by in the hallway, as well as on the staircase. Several of the people are gesturing, and they appear to be partially blocking the path of the officers who are trying to escort Person B out of the building. At about 7:15:09, Respondent holds his baton up in his hand as he faces the crowd. Seconds later, Respondent pushes one woman away and the crowd backs off, allowing the officers to walk Person B out of the building.



Respondent testified that he and Officer Sanchez initially responded to a call of a past assault [REDACTED]. They met with a female complainant and her eyewitness daughter, and took them on a canvass with negative results. After dropping off the women back at the location, the officers were en route to the precinct when they heard an additional call for a stabbing of a female at the same building. They returned to the location, where Respondent saw the eyewitness they had previously interviewed pointing in the direction of a fleeing female. Respondent's partner went inside [REDACTED], while Respondent chased and apprehended the female, and brought her to the RMP in handcuffs. It was confirmed that a female had been stabbed, there was blood on the street, and EMS was on the scene. Respondent also heard his partner "screaming for help" over the radio, and Respondent rushed back to the building. (Tr. 34-37)

Respondent entered the building with his baton already deployed because of the dangerous nature of the stabbing incident and his partner's call for assistance. He observed his partner on the floor apprehending a suspect. There was a teenage female on top of Officer Sanchez's back, "preventing him from doing his duty." Although he did not see a weapon in her possession, Respondent was alert for the presence of a knife since there had just been a stabbing. Respondent testified that aside from this overall safety concern, his goal was to prevent the female from assaulting his partner and to stop her from interfering with the apprehension of the suspect on the floor. Respondent explained his mindset:

The seriousness of the crime or the call that I responded to. It's a stabbing call. It's not – it's not a dispute. It's somebody's hurt, somebody's stabbed. At that point the level of seriousness and how – what precaution to have to take and make sure that everybody is safe is really high. (Tr. 39 40, 61, 87)

Toward that end, Respondent tried to grab her to get her under control, as did another officer. According to Respondent, the female resisted, and Respondent was pushed back against

the wall, with the female bent over near his gun belt. Respondent stated that he struck the female with his baton in the lower part of her body, in her leg area, once or twice, though things were happening so fast that he may have struck her more times than that. Respondent intended to avoid her head and neck area, and he insisted he did not strike the female in the head or neck. However, in his CCRB interview on February 5, 2016, he initially stated that he struck her “around her neck area”, before explaining later in the interview that if he did say that he must have misspoke. Once she stopped resisting, Respondent stopped striking her and she was handcuffed by another officer. (Tr. 41-45, 49-58, 64, 67) Respondent did not observe any visible injuries on the female, nor did she complain of any injuries. (Tr. 48-49)

As the officers were removing the female from the hallway, several civilians ran toward them and prevented the officers from leaving. The civilians were aggressive, screaming and yelling at the officers. Respondent had his baton raised up in his right hand, while he held out his left hand and told the people to “get back”, in order to prevent them from aiding the suspects in custody. The officers were able to leave the location with the two suspects without further incident. (Tr. 46-48, 82)<sup>1</sup>

Specification 1 charges Respondent with wrongfully using force against Person B by striking her with his baton without police necessity. Section 203-11 of the Patrol Guide, which governed the use of force at the time of the incident, requires an officer to use “minimum necessary force.” The Patrol Guide emphasizes that EXCESSIVE FORCE WILL NOT BE

---

<sup>1</sup> Also entered into evidence as part of Respondent’s case was a stipulation between the parties that after watching the video footage of the incident, the Department’s “use of force review board” found that Respondent’s actions were within Department guidelines. As I indicated to the parties during the trial, this is a de novo hearing on the merits, where an independent determination is made regarding each of the two specifications based on the record presented by the parties. (Tr. 20, 27-29)

TOLERATED. At issue here is whether under the circumstances that Respondent encountered on November 13, his use of his baton against Person B was unreasonable.

Counsel for CCRB argues that Respondent's use of his baton was excessive, stressing that Person B was an unarmed 14-year old girl, approximately 4'11", 100 pounds at the time of the incident. Just as none of the other officers on the scene felt the need to employ any weapons against Person B, Respondent, too, could have used more minimal force in restraining her. Instead, Respondent rushed into the location "like a bull out of the gate", and repeatedly struck Person B with his baton without police necessity.

Respondent counters that it was a "fast-moving event", and that he reacted reasonably to the situation at hand in order to gain the compliance of Person B. This tribunal agrees. Respondent rushed into the building out of concern for the safety of his partner, whom he had just heard radio for help. The officers were responding to a violent crime, a stabbing that had just occurred, after they had just been at the same location for another alleged assault. There was blood on the street and EMS was on the scene. It was unclear at that moment whether a knife or other weapon connected with that stabbing was somewhere at the location, heightening Respondent's safety concerns.

As Respondent entered the building, he saw Person B actively interfering with his partner's attempt to handcuff a suspect. It is not clear that as Respondent was racing up the stairs, he was in a position to ascertain the age, height and weight of the female, who was wearing an oversized jacket at the time -- certainly not to the point where he could eliminate her as a possible threat to the safety of those on the scene. Respondent was understandably concerned that Person B's actions might pose a risk to the safety of his partner and the other officers. Even after she was separated from her brother and Officer Sanchez, Person B refused to be compliant. Instead, she



continued to pull away from the officers, and the momentum of that struggle sent Respondent up against the wall, where he was standing near the edge of the stairs in a vulnerable position. As a result of Person B's obstructive behavior, as many as four officers were involved in subduing her at the same time her brother was being apprehended.

Under these circumstances, it was not unreasonable for Respondent to employ his baton in the manner he did, in order to restrain Person B swiftly and decisively. It is unclear where precisely Respondent struck Person B with his baton, but from the credible evidence, including the video footage, it appears more likely than not that he struck her repeatedly in the lower body area, around her legs. Person B did not testify, and there was no interview presented that provided her account of what occurred. Person B's medical records reveal no injury to her head, only swelling to her ankle and some superficial redness behind her ear. In her hearsay statement, Person A asserted that Respondent struck Person B in her head and back. However, she also said this occurred while Person A was lying on her stomach, which appears inconsistent with the video footage. It would have been useful to have Person A point out where she was on the video, and to hear her cross-examined on how much of the incident she actually observed, but she, too, did not appear. Even though Respondent, in his CCRB interview, initially stated that he struck Person B in the neck area, later in the same interview he clarified that he misspoke, and I credit his testimony that his intention was to strike her in the lower body, and that he never struck her in the head and neck. This conclusion is supported by how quickly Respondent ceased using the baton.

This tribunal is mindful of the concerns raised by CCRB regarding the striking of a 14-year old with a baton, who apparently suffered an ankle injury from events that day. This tribunal also is aware that Respondent did not observe any weapons in Person B's possession.



Nevertheless, it is important to keep in mind the chaotic and potentially dangerous scene that Respondent came upon, at a location where a stabbing had just occurred.

As Respondent explained:

At that point seeing somebody on my partner's back means that he could be in danger. Knowing that somebody is assaulted already, anyone there could have had a knife at any point. It could be the person on the floor. It could be the female there. Anybody could have hurt anybody there. So to gain control of the situation to avoid anybody being hurt, including my partner or a civilian, those other people being there, it was necessary to gain control of her so she – if she has a knife, she won't be able to hurt anyone, and gain control as soon as possible. (Tr. 87)

Under the totality of circumstances faced by Respondent, his actions were not unreasonable. In light of the violent nature of the underlying crime that had just occurred, his partner's call for help, Person B's active interference with the arrest of her brother, and her resistance to the officers' efforts to gain her immediate compliance, Respondent acted reasonably in order to defuse a rapidly unfolding, volatile situation. The record has failed to establish, by a preponderance of the credible evidence, that Respondent struck Person B without police necessity, and I find him not guilty of Specification 1.

Specification 2 alleges that Respondent unlawfully threatened Person A with his baton. There is no dispute that Respondent did raise his baton in his right hand and held out his left hand as he faced a crowd of people in the lobby area. However, Respondent testified that the crowd was behaving in an aggressive manner, momentarily blocking the officers from leaving the building with their prisoners. This testimony was corroborated by the video footage, where one woman even barreled up the steps to where the officers were holding a handcuffed Person B. Person A, herself, confirmed that "half of the building came downstairs", many of whom were upset with what was happening and were yelling.

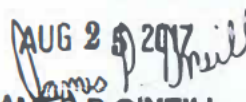
Respondent's actions were a reasonable response to the situation. There had just been a violent felony assault at the location, and the officers had two handcuffed prisoners who they needed to escort out of the building for transport to a secure police facility. Under the circumstances, they did so safely and efficiently, and I find Respondent not guilty of Specification 2.

Respectfully submitted,



Jeff S. Adler  
Assistant Deputy Commissioner Trials

**APPROVED**

AUG 25 2017  
  
JAMES P. O'NEILL  
POLICE COMMISSIONER